

And among other things, we decided or I decided that one of the best sources of interrogation techniques would be trying to locate and interview and become involved with experienced police interrogators in the country and experienced people who had real practical knowledge of interrogation. The reason for this is that we had become pretty well convinced after the experience of the brainwashing problems coming out of China, that it was the techniques of the interrogators that were causing the individuals to make confessions and so forth in relationship to this, rather than any kind of drugging and so forth. So we were very much interested in interrogation techniques, and this led to me being introduced to the agent in the west coast, and I began to talk to him in connection with these interrogation techniques.

Senator KENNEDY. OK. Now, that is the agent that ran the tests on the west coast on the unwitting people. That's where you come in, correct?

Mr. GITTINGER. If I understand—would you say that again?

Senator KENNEDY. The name Morgan Hall has been—that is the name that has been used.

Mr. GITTINGER. Yes.

Senator KENNEDY. And that is the agent that you met with.

Mr. GITTINGER. That is right.

Senator KENNEDY. And you met at the safe house.

Mr. GITTINGER. Yes, sir.

Senator KENNEDY. Whom did you meet with in the safe house?

Mr. GITTINGER. This is the part that is hard for me to say, and I am sorry that I have to. In connection with some work that we were doing, we needed to have some information on sexual habits. Morgan Hall provided informants for me to talk to in connection with the sex habits that I was interested in trying to find information. During one period of time the safe house, as far as I was concerned, was used for just these particular type of interviews. And I didn't see the red curtains.

Senator KENNEDY. Those were prostitutes, were they?

Mr. GITTINGER. Yes, sir.

Senator KENNEDY. How many different times were you there that you had similar—

Mr. GITTINGER. I couldn't possibly say with any certainty on that. Four or five times.

Senator KENNEDY. Four or five times.

Mr. GITTINGER. Over—you remember now, the period that I'm talking about when I would have any involvement in this is from about 1956 to 1961. So it's about a 4- or 5-year period which is the only time that I know anything about what you are talking about here today.

Senator KENNEDY. Did Morgan Hall make the arrangements for the prostitutes to meet with you?

Mr. GITTINGER. Yes, sir.

Senator KENNEDY. Did the interviews that you had have anything to do with drugs?

Mr. GITTINGER. Well, as I tried to explain earlier when this was being discussed a little bit beforehand, again I think it is pretty hard for most people now to recognize how little there was known about drugs at the period of time that we are talking about, because the

drug age or the drug culture comes later on. Consequently, those of us who had any responsibility in this area were interested in trying to get as much information as we could on the subculture, the subculture drug groups, and obviously the Bureau of Narcotics represented a means of doing this. Consequently, other types of things that were involved in discussions at that time would have to do with the underground use of drugs. When I am talking about this I am talking about the folkways in terms of unwitting use of drugs. Did these people that I was talking to have any information about this and on rare instances they were able to tell me about their use, and in most cases this would largely turn out to be a Mickey Finn or something of that sort rather than anything esoteric.

I also was very much interested because we had relatively little information, believe it or not, at that time, in terms of the various reactions that people were having to drugs. Therefore, these people were very informative in terms of they knew a great deal of information about reactions.

Senator KENNEDY. At least you gathered—or am I correct in assuming that you gathered the impression that the prostitutes that you had talked to were able to slip the drugs to people as I understand it. Did you form any impression on that?

Mr. GITTINGER. I certainly did not form the impression that they did this as a rule or—

Senator KENNEDY. But they had the knowledge.

Mr. GITTINGER. They had the knowledge or some of them had had knowledge of this being done. But again, as it turned out, it was largely in this area of knockout drops.

Senator KENNEDY. Looking back now did you form any impression about how the Agency was actually testing the broad spectrum of social classes in these safe houses? With the large disbursement of cash in small quantities, \$100 bills and the kinds of elaborate decorations and two-way mirrors in the bedrooms and all the rest, is there any question in your own mind what was going on in the safe houses, or the techniques that were being used to administer these drugs?

Mr. GITTINGER. I find it very difficult to answer that question, sir. I had absolutely no direct knowledge there was a large number of this. I had no knowledge that anyone other than—than Morgan Hall was in any way involved in the unwitting administration of drugs.

Senator KENNEDY. But Gottlieb would know, would he not?

Mr. GITTINGER. I believe so, yes, sir.

Senator KENNEDY. Could we go into the Human Ecology Foundation and talk about that and how it was used as an instrument in terms of the support of research?

Mr. GITTINGER. Yes, sir.

Senator KENNEDY. Could you describe it to us? Could you describe the Human Ecology Foundation, how it functioned and how it worked?

Mr. GITTINGER. May I tell something about how it evolved, which I think is important?

Senator KENNEDY. Sure.

Mr. GITTINGER. The Society for the Investigation of Human Ecology, so-called, was actually a—I am confused here now as to whether I should name you names.

Senator KENNEDY. Well, we're not interested in names or institutions, so we prefer that you do not. That has to be worked out in arrangements between Admiral Turner and the individuals and the institutions.

But we're interested in what the Foundation really was and how it functioned and what its purpose was.

Mr. GITTINGER. Well, it was established to undertake research in the general area of the behavioral sciences. It definitely had almost no focus or interest in, say, drug-related type of activities except in a very minor way, because it was largely set up to attempt to gain a certain amount of information and to fund projects which were psychological, sociological, anthropological in character. It was established in the sense of a period of time that a lot of us who are in it wish we could do it over again, but we were interested in trying to get together a panel of the most representative high-level behavioral scientists we could to oversee and help in terms of developing the Society for the Investigation of Human Ecology type of program.

The Agency in effect provided the money. They did not direct the projects. Now, the fact of the matter is, there are a lot of innocent people who received the Society for the Investigation of Human Ecology money which I know for a fact they were never asked to do anything for the CIA but they did get through this indirectly. They had no knowledge that they were getting CIA money.

Senator KENNEDY. Over what period of time did this take place?

Mr. GITTINGER. As far as I was concerned, it was the period of time ending in 1961. I believe the Human Ecology fund finally phased out in 1965, but I was not involved in this phasing out.

Senator KENNEDY. Can you give the range of the different sort of individual projects of the universities in which it was active?

Mr. GITTINGER. Well, it would have as many as—I am very fuzzy on my memory on the number of projects. It is over 10, 20, 30.

Senator KENNEDY. After it made the grants, what was the relationship of the Agency with the results of the studies? The Foundation acquired the money to make the grants from the Agency, and then it made the grants to these various research programs.

Mr. GITTINGER. Yes, sir.

Senator KENNEDY. And that included eight universities as well as individual researchers?

Mr. GITTINGER. Yes, sir.

Senator KENNEDY. Then what follow-up was there to that, sir?

Mr. GITTINGER. Well, in every sense of the word, the organization was run exactly like any other foundation, and it carried with it the same thing in terms of making certain that the people that they had given money to used it for the purpose for which it had been granted, that they had access to any of the reports that they had put out, but there were no strings attached to anybody. There wasn't any reason they couldn't publish anything that they put out.

Senator KENNEDY. What sort of budget are we talking about here?

Mr. GITTINGER. I honestly do not remember. I would guess we are talking in the realm of about \$150,000 a year, but don't hold me to that, because I don't know.

Senator KENNEDY. What is your view about such funding as a professional person, in terms of compromising the integrity of a university, sir?

Mr. GITTINGER. Well, obviously, sir, insofar as today there is no question about it. I will have to say at the time that we were doing this there was quite an entirely different kind of an attitude, and I do know for a fact that we moved to start towards phasing out the Society for the Investigation of Human Ecology and the Human Ecology Fund for the very reason that we were beginning to recognize that it was moving into an area but this would be compromised.

Senator KENNEDY. Well, that is commendable, both your attitude and the reasons for it, but during that period of time it still was involved in behavior research programs, as I understand it.

Mr. GITTINGER. Yes, sir. On its own, in connection with this, it participated again, and these again were not CIA-directed projects, but these were all things which would theoretically contribute to the general knowledge at the time where the things like the study of the Hungarian refugees—obviously, the study of the Hungarian refugees who came to this country after the Hungarian revolt was a very useful exercise to try to get information about the personality characteristics of the Communists and so forth.

Senator KENNEDY. Were there other foundations that were doing similar kinds of work?

Mr. GITTINGER. Not to my knowledge, sir.

Senator KENNEDY. You believe—

Mr. GITTINGER. You mean, CIA, other CIA?

Senator KENNEDY. Right.

Mr. GITTINGER. Well, my answer is in the sense that I know of no other CIA foundations, no. There were, of course, other foundations doing similar kinds of work in the United States.

Senator KENNEDY. Have you heard of the Psychological Assessments Foundation?

Mr. GITTINGER. I certainly have.

Senator KENNEDY. What was that? What function did that have?

Mr. GITTINGER. Now, this was bringing us up to a different era. I believe the functions of that organization have nothing whatsoever to do with the things that are being talked about here while I was associated with it.

Senator KENNEDY. Rather than getting into the work, it was another foundation, was it not? It was another foundation supported by the Agency?

Mr. GITTINGER. What, the Psychological Assessment?

Senator KENNEDY. Yes.

Mr. GITTINGER. No, sir, it was not.

Senator KENNEDY. It did not get any support at all from the Agency?

Mr. GITTINGER. Oh, yes, sir. It did get support, but it was a business firm.

Senator KENNEDY. It was a business but it got support from the Agency?

Mr. GITTINGER. It got money from it, but it definitely was not in MKULTRA or in any way associated with this.

Senator KENNEDY. All right. I want to thank you for your helpful testimony, Mr. Gittinger. It is not easy to go back into the past. I think you have been very fair in your characterizations, and I think it is quite appropriately indicated that there are different standards now from what they were 25 years ago, and I think you have responded very fairly and completely to the inquiries, and I think with a good deal of feeling about it.

You are a person who is obviously attempting to serve the country's interest, so I want to thank you very much for your statement and for your helpful timeliness.

Mr. GITTINGER. Thank you, sir.

Senator INOUE. Senator Case?

Senator CASE. Thank you, Mr. Chairman. I am sorry that I had another committee that I had to complete the hearing with this morning before I got here.

I shall read the testimony with very great interest, and I appreciate your testimony as I have heard it. I would like to comment just on one point, and that is, it relates to a story in the press yesterday about part of this program involving the funding of a grant at a foreign university. I would like to elicit from you a comment as to the additional sensitivity and difficulty that that practice involves from your standpoint as a scientist, as well as a citizen, if you will.

Mr. GITTINGER. I will say it was after the fact thinking. It was utter stupidity the way things worked out to have used some of this money outside the United States when it was CIA money. I can categorically state to my knowledge and I don't claim a complete knowledge all the way across of the human ecology functions, but to my knowledge, and this is unfortunate, those people did not know that they were getting money from CIA, and they were not asked to contribute anything to CIA as such.

Senator CASE. It would be interesting to try to examine this by turning the thing around and thinking what we would think if this happened from a foreign official agency to our own university. Thank you, Mr. Chairman.

Senator INOUE. Senator Schweiker.

Senator SCHWEIKER. Thank you, Mr. Chairman.

Dr. Goldman, I wonder if you would tell us what your training and educational background is?

Dr. GOLDMAN. I have already given a biography for the record.

Senator SCHWEIKER. I have not seen it. Who has it? Is it classified? We may have it for the record, but may I ask you to briefly describe your training and background for us now? I hope it is no secret.

Dr. GOLDMAN. Well, I was told if I was asked this to say that. I was told that by your staff people, but I have no objection to telling you. I am a resident from Pennsylvania, southwest Pennsylvania, Lancaster County. I went to Penn State, and I am in nutrition.

Senator SCHWEIKER. In what?

Dr. GOLDMAN. Nutrition.

Senator SCHWEIKER. Were you in charge of a section or segment of the CIA in your past capacity?

Dr. GOLDMAN. During the time I was with that organization, I was in charge of one small section of it, one small segment of it; yes.

Senator SCHWEIKER. What was the function or purpose of that section that you headed?

Dr. GOLDMAN. To provide support for the other parts of the division.

Senator SCHWEIKER. Where in the chain of command would that put you in relation to Dr. Gottlieb?

Dr. GOLDMAN. Pretty far down the line.

Senator SCHWEIKER. Mr. Gittinger, I would just like to ask you a few questions. We appreciate your frankness and candor with the committee, and we realize this is a very difficult area to go into. I am not quite clear on two matters that were raised earlier. First, were the safe houses we were talking about here used on occasion by the prostitutes you referred to?

Mr. GITTINGER. I really have not the slightest idea.

Senator SCHWEIKER. Were the prostitutes used in any way to slip the customers drugs for observation purposes?

Mr. GITTINGER. Not to my direct knowledge.

Senator SCHWEIKER. Would you have been in a position to know the answer to either of these questions?

Mr. GITTINGER. May I say, probably not, and may I make an aside to explain a little bit of this, please, sir?

Senator SCHWEIKER. Mr. Gittinger, a moment ago you mentioned brainwashing techniques, as one area that you had, I guess, done some work in. How would you characterize the state of the art of brainwashing today? Who has the most expertise in this field, and who is or is not doing it in terms of other governments?

During the Korean war there was a lot of serious discussion about brainwashing techniques being used by the North Koreans, and I am interested in finding out what the state of the art is today, as you see it.

Mr. GITTINGER. Well, of course, there has been a great deal of work on this, and there is still a great deal of controversy. I can tell you that as far as I knew, by 1961, 1962, it was at least proven to my satisfaction that brainwashing, so called, is some kind of an esoteric device where drugs or mind-altering kinds of conditions and so forth were used, did not exist even though "The Manchurian Candidate" as a movie really set us back a long time, because it made something impossible look plausible. Do you follow what I mean? But by 1962 and 1963, the general idea that we were able to come up with is that brainwashing was largely a process of isolating a human being, keeping him out of contact, putting him under long stress in relationship to interviewing and interrogation, and that they could produce any change that way without having to resort to any kind of esoteric means.

Senator SCHWEIKER. Are there ways that we can ascertain this from a distance when we see a captive prisoner either go on television, in a photograph, or at a press conference? In other words, are there certain signs that you have learned to recognize from your technical background, to tell when brainwashing has occurred? Or is that very difficult to do?

Mr. GITTINGER. It is difficult to do. I think it is possible now in terms of looking at a picture of somebody who has been in enemy hands for a long period of time. We can get some pretty good ideas of what kind of circumstances he has been under, if that is what you mean.

Senator SCHWEIKER. That is all I have, Mr. Chairman. Thank you.

Senator INOUE. Thank you very much.

Before adjourning the hearings, I would like to have the record show that Dr. Goldman and Mr. Gittinger have voluntarily cooperated with the committee in staff interviews, that they appear this morning voluntarily, and they are not under subpoena.

Gentlemen, I realize that this experience may have been an unhappy one and possibly a painful one. Therefore, we thank you very much for participating this morning. We also realize that the circumstances of that time differed very much from this day, and possibly the national attitude, the national political attitude condoned this type of activity. So, we have not asked you to come here as persons who have committed crimes, but rather in hope that you can assist us in studying this problem so that it will not occur once again. In that spirit we thank you for your participation, and we look forward to working with you further in this case.

Thank you very much.

Senator KENNEDY. Mr. Chairman, I would like also to thank the witnesses. These are difficult matters, and I think all of us are very grateful.

Senator SCHWEIKER. I think the witnesses should know that though it may not always seem that way, what we are trying to do is to probe the past and look at the policies of the past to affect the future. I think our emphasis really is on the future, not the past, but it is important that we learn from the past as we formulate policies and legislation for the future, I hope that all of the witnesses who did come before us voluntarily this morning, including Admiral Turner respect the fact that we are questioning the past to learn about the future. I think it should be looked at in that light.

Senator KENNEDY. I think that is the spirit in which we have had these hearings. It seems to me that from both these witnesses and others, Gottlieb knows the information and can best respond, and we are going to make every effort in the Senate Health Committee to get Mr. Gottlieb to appear, and we obviously look forward to cooperating with Senator Inouye and the other members of the committee in getting the final chapter written on this, but we want to thank you very much for your appearance here.

Senator INOUE. The hearing will stand in recess, subject to the call of the Chair.

[Whereupon, at 12:12 p.m., the hearing was recessed, subject to the call of the Chair.]

APPENDIX A

XVII. TESTING AND USE OF CHEMICAL AND BIOLOGICAL AGENTS BY THE INTELLIGENCE COMMUNITY

Under its mandate ¹ the Select Committee has studied the testing and use of chemical and biological agents by intelligence agencies. Detailed descriptions of the programs conducted by intelligence agencies involving chemical and biological agents will be included in a separately published appendix to the Senate Select Committee's report. This section of the report will discuss the rationale for the programs, their monitoring and control, and what the Committee's investigation has revealed about the relationships among the intelligence agencies and about their relations with other government agencies and private institutions and individuals.²

Fears that countries hostile to the United States would use chemical and biological agents against Americans or America's allies led to the development of a defensive program designed to discover techniques for American intelligence agencies to detect and counteract chemical and biological agents. The defensive orientation soon became secondary as the possible use of these agents to obtain information from, or gain control over, enemy agents became apparent.

Research and development programs to find materials which could be used to alter human behavior were initiated in the late 1940s and early 1950s. These experimental programs originally included testing of drugs involving witting human subjects, and culminated in tests using unwitting, nonvolunteer human subjects. These tests were designed to determine the potential effects of chemical or biological agents when used operationally against individuals unaware that they had received a drug.

The testing programs were considered highly sensitive by the intelligence agencies administering them. Few people, even within the agencies, knew of the programs and there is no evidence that either the executive branch or Congress were ever informed of them. The highly compartmented nature of these programs may be explained in part by an observation made by the CIA Inspector General that, "the knowledge that the Agency is engaging in unethical and illicit activi-

¹ Senate Resolution 21 directs the Senate Select Committee on Intelligence Activities to investigate a number of issues:

"(a) Whether agencies within the intelligence community conducted illegal domestic activities (Section 2(1) and (2));

"(b) The extent to which agencies within the intelligence community cooperate (Section 2(4) and (8));

"(c) The adequacy of executive branch and congressional oversight of intelligence activities (Section 2(7) and (11));

"(d) The adequacy of existing laws to safeguard the rights of American citizens (Section 2(13))."

² The details of these programs may never be known. The programs were highly compartmented. Few records were kept. What little documentation existed for the CIA's principal program was destroyed early in 1973.

ties would have serious repercussions in political and diplomatic circles and would be detrimental to the accomplishment of its missions."³

The research and development program, and particularly the covert testing programs, resulted in massive abridgments of the rights of American citizens, sometimes with tragic consequences. The deaths of two Americans^{3a} can be attributed to these programs; other participants in the testing programs may still suffer from the residual effects. While some controlled testing of these substances might be defended, the nature of the tests, their scale, and the fact that they were continued for years after the danger of surreptitious administration of LSD to unwitting individuals was known, demonstrate a fundamental disregard for the value of human life.

The Select Committee's investigation of the testing and use of chemical and biological agents also raise serious questions about the adequacy of command and control procedures within the Central Intelligence Agency and military intelligence, and about the relationships among the intelligence agencies, other governmental agencies, and private institutions and individuals. The CIA's normal administrative controls were waived for programs involving chemical and biological agents to protect their security. According to the head of the Audit Branch of the CIA, these waivers produced "gross administrative failures." They prevented the CIA's internal review mechanisms (the Office of General Counsel, the Inspector General, and the Audit Staff) from adequately supervising the programs. In general, the waivers had the paradoxical effect of providing less restrictive administrative controls and less effective internal review for controversial and highly sensitive projects than those governing normal Agency activities.

The security of the programs was protected not only by waivers of normal administrative controls, but also by a high degree of compartmentation within the CIA. This compartmentation excluded the CIA's Medical Staff from the principal research and testing program employing chemical and biological agents.

It also may have led to agency policymakers receiving differing and inconsistent responses when they posed questions to the CIA component involved.

Jurisdictional uncertainty within the CIA was matched by jurisdictional conflict among the various intelligence agencies. A spirit of cooperation and reciprocal exchanges of information which initially characterized the programs disappeared. Military testers withheld information from the CIA, ignoring suggestions for coordination from their superiors. The CIA similarly failed to provide information to the military on the CIA's testing program. This failure to cooperate was conspicuously manifested in an attempt by the Army to conceal

³ CIA Inspector General's Survey of TSD, 1957, p. 217.

^{3a} On January 8, 1953. Mr. Harold Blauer died of circulatory collapse and heart failure following an intravenous injection of a synthetic mescaline derivative while a subject of tests conducted by New York State Psychiatric Institute under a contract let by the U.S. Army Chemical Corps. The Committee's investigation into drug testing by U.S. intelligence agencies focused on the testing of LSD, however, the committee did receive a copy of the U.S. Army Inspector General's Report, issued on October 1975, on the events and circumstances of Mr. Blauer's death. His death was directly attributable to the administration of the synthetic mescaline derivative.

their overseas testing program, which included surreptitious administration of LSD, from the CIA. Learning of the Army's program, the Agency surreptitiously attempted to obtain details of it.

The decision to institute one of the Army's LSD field testing projects had been based, at least in part, on the finding that no long-term residual effects had ever resulted from the drug's administration. The CIA's failure to inform the Army of a death which resulted from the surreptitious administration of LSD to unwitting Americans, may well have resulted in the institution of an unnecessary and potentially lethal program.

The development, testing, and use of chemical and biological agents by intelligence agencies raises serious questions about the relationship between the intelligence community and foreign governments, other agencies of the Federal Government, and other institutions and individuals. The questions raised range from the legitimacy of American complicity in actions abroad which violate American and foreign laws to the possible compromise of the integrity of public and private institutions used as cover by intelligence agencies.

A. THE PROGRAMS INVESTIGATED

1. *Project CHATTER*

Project CHATTER was a Navy program that began in the fall of 1947. Responding to reports of "amazing results" achieved by the Soviets in using "truth drugs," the program focused on the identification and testing of such drugs for use in interrogations and in the recruitment of agents. The research included laboratory experiments on animals and human subjects involving *Anabasis aphylla*, scopolamine, and mescaline in order to determine their speech-inducing qualities. Overseas experiments were conducted as part of the project.

The project expanded substantially during the Korean War, and ended shortly after the war, in 1953.

2. *Project BLUEBIRD/ARTICHOKE*

The earliest of the CIA's major programs involving the use of chemical and biological agents, Project BLUEBIRD, was approved by the Director in 1950. Its objectives were:

- (a) discovering means of conditioning personnel to prevent unauthorized extraction of information from them by known means, (b) investigating the possibility of control of an individual by application of special interrogation techniques, (c) memory enhancement, and (d) establishing defensive means for preventing hostile control of Agency personnel.⁴

As a result of interrogations conducted overseas during the project, another goal was added—the evaluation of offensive uses of unconventional interrogation techniques, including hypnosis and drugs. In August 1951, the project was renamed ARTICHOKE. Project ARTICHOKE included in-house experiments on interrogation techniques, conducted "under medical and security controls which would ensure

⁴ CIA memorandum to the Select Committee, "Behavioral Drugs and Testing," 2/11/75.

that no damage was done to individuals who volunteer for the experiments."⁵ Overseas interrogations utilizing a combination of sodium pentothal and hypnosis after physical and psychiatric examinations of the subjects were also part of ARTICHOKE.

The Office of Scientific Intelligence (OSI), which studied scientific advances by hostile powers, initially led BLUEBIRD/ARTICHOKE efforts. In 1952, overall responsibility for ARTICHOKE was transferred from OSI to the Inspection and Security Office (I&SO), predecessor to the present Office of Security. The CIA's Technical Services and Medical Staffs were to be called upon as needed; OSI would retain liaison function with other government agencies.⁶ The change in leadership from an intelligence unit to an operating unit apparently reflected a change in emphasis; from the study of actions by hostile powers to the use, both for offensive and defensive purposes, of special interrogation techniques—primarily hypnosis and truth serums.

Representatives from each Agency unit involved in ARTICHOKE met almost monthly to discuss their progress. These discussions included the planning of overseas interrogations⁷ as well as further experimentation in the U.S.

Information about project ARTICHOKE after the fall of 1953 is scarce. The CIA maintains that the project ended in 1956, but evidence suggests that Office of Security and Office of Medical Services use of "special interrogation" techniques continued for several years thereafter.

3. MKNAOMI

MKNAOMI was another major CIA program in this area. In 1967, the CIA summarized the purposes of MKNAOMI:

(a) To provide for a covert support base to meet clandestine operational requirements.

(b) To stockpile severely incapacitating and lethal materials for the specific use of TSD [Technical Services Division].

(c) To maintain in operational readiness special and unique items for the dissemination of biological and chemical materials.

(d) To provide for the required surveillance, testing, upgrading, and evaluation of materials and items in order to assure absence of defects and complete predictability of results to be expected under operational conditions.⁸

Under an agreement reached with the Army in 1952, the Special Operations Division (SOD) at Fort Detrick was to assist CIA in developing, testing, and maintaining biological agents and delivery

⁵ Memorandum from Robert Taylor, O/DD/P to the Assistant Deputy (Inspection and Security) and Chief of the Medical Staff, 3/22/52.

⁶ Memorandum from H. Marshall Chadwell, Assistant Director, Scientific Intelligence, to the Deputy Director/Plans (DDP) "Project ARTICHOKE," 8/29/52.

⁷ "Progress Report, Project ARTICHOKE," 1/12/53.

⁸ Memorandum from Chief, TSD/Biological Branch to Chief, TSD "MKNAOMI: Funding, Objectives, and Accomplishments," 10/18/67, p. 1. For a fuller description of MKNAOMI and the relationship between CIA and SOD, see p. 360 ff.

systems. By this agreement, CIA acquired the knowledge, skill, and facilities of the Army to develop biological weapons suited for CIA use.

SOD developed darts coated with biological agents and pills containing several different biological agents which could remain potent for weeks or months. SOD also developed a special gun for firing darts coated with a chemical which could allow CIA agents to incapacitate a guard dog, enter an installation secretly, and return the dog to consciousness when leaving. SOD scientists were unable to develop a similar incapacitant for humans. SOD also physically transferred to CIA personnel biological agents in "bulk" form, and delivery devices, including some containing biological agents.

In addition to the CIA's interest in biological weapons for use against humans, it also asked SOD to study use of biological agents against crops and animals. In its 1967 memorandum, the CIA stated:

Three methods and systems for carrying out a covert attack against crops and causing severe crop loss have been developed and evaluated under field conditions. This was accomplished in anticipation of a requirement which was later developed but was subsequently scrubbed just prior to putting into action.^{9a}

MKNAOMI was terminated in 1970. On November 25, 1969, President Nixon renounced the use of any form of biological weapons that kill or incapacitate and ordered the disposal of existing stocks of bacteriological weapons. On February 14, 1970, the President clarified the extent of his earlier order and indicated that toxins—chemicals that are not living organisms but are produced by living organisms—were considered biological weapons subject to his previous directive and were to be destroyed. Although instructed to relinquish control of material held for the CIA by SOD, a CIA scientist acquired approximately 11 grams of shellfish toxin from SOD personnel at Fort Detrick which were stored in a little-used CIA laboratory where it went undetected for five years.¹⁰

4. MKULTRA

MKULTRA was the principal CIA program involving the research and development of chemical and biological agents. It was "concerned with the research and development of chemical, biological, and radiological materials capable of employment in clandestine operations to control human behavior."¹¹

In January 1973, MKULTRA records were destroyed by Technical Services Division personnel acting on the verbal orders of Dr. Sidney Gottlieb, Chief of TSD. Dr. Gottlieb has testified, and former Director Helms has confirmed, that in ordering the records destroyed, Dr. Gottlieb was carrying out the verbal order of then DCI Helms.

MKULTRA began with a proposal from the Assistant Deputy Director for Plans, Richard Helms, to the DCI, outlining a special

^{9a} *Ibid.* p. 2.

¹⁰ Senate Select Committee, 9/16/75, Hearings, Vo. 1.

¹¹ Memorandum from the CIA Inspector General to the Director, 7/26/63.

funding mechanism for highly sensitive CIA research and development projects that studied the use of biological and chemical materials in altering human behavior. The projects involved:

Research to develop a capability in the covert use of biological and chemical materials. This area involves the production of various physiological conditions which could support present or future clandestine operations. Aside from the offensive potential, the development of a comprehensive capability in this field of covert chemical and biological warfare gives us a thorough knowledge of the enemy's theoretical potential, thus enabling us to defend ourselves against a foe who might not be as restrained in the use of these techniques as we are.¹²

MKULTRA was approved by the DCI on April 13, 1953 along the lines proposed by ADDP Helms.

Part of the rationale for the establishment of this special funding mechanism was its extreme sensitivity. The Inspector General's survey of MKULTRA in 1963 noted the following reasons for this sensitivity:

a. Research in the manipulation of human behavior is considered by many authorities in medicine and related fields to be professionally unethical, therefore the reputation of professional participants in the MKULTRA program are on occasion in jeopardy.

b. Some MKULTRA activities raise questions of legality implicit in the original charter.

c. A final phase of the testing of MKULTRA products places the rights and interests of U.S. citizens in jeopardy.

d. Public disclosure of some aspects of MKULTRA activity could induce serious adverse reaction in U.S. public opinion, as well as stimulate offensive and defensive action in this field on the part of foreign intelligence services.¹³

Over the ten-year life of the program, many "additional avenues to the control of human behavior" were designated as appropriate for investigation under the MKULTRA charter. These include "radiation, electroshock, various fields of psychology, psychiatry, sociology, and anthropology, graphology, harassment substances, and paramilitary devices and materials."¹⁴

The research and development of materials to be used for altering human behavior consisted of three phases: first, the search for materials suitable for study; second, laboratory testing on voluntary human subjects in various types of institutions; third, the application of MKULTRA materials in normal life settings.

The search for suitable materials was conducted through standing arrangements with specialists in universities, pharmaceutical houses, hospitals, state and federal institutions, and private research organi-

¹² Memorandum from ADDP Helms to DCI Dulles, 4/3/53, Tab A, pp. 1-2.

¹³ I.G. Report on MKULTRA, 1963, pp. 1-2.

¹⁴ *Ibid.*, p. 4.

zations. The annual grants of funds to these specialists were made under ostensible research foundation auspices, thereby concealing the CIA's interest from the specialist's institution.

The next phase of the MKULTRA program involved physicians, toxicologists, and other specialists in mental, narcotics, and general hospitals, and in prisons. Utilizing the products and findings of the basic research phase, they conducted intensive tests on human subjects.

One of the first studies was conducted by the National Institute of Mental Health. This study was intended to test various drugs, including hallucinogenics, at the NIMH Addiction Research Center in Lexington, Kentucky. The "Lexington Rehabilitation Center," as it was then called, was a prison for drug addicts serving sentences for drug violations.

The test subjects were volunteer prisoners who, after taking a brief physical examination and signing a general consent form, were administered hallucinogenic drugs. As a reward for participation in the program, the addicts were provided with the drug of their addiction.

LSD was one of the materials tested in the MKULTRA program. The final phase of LSD testing involved surreptitious administration to unwitting nonvolunteer subjects in normal life settings by undercover officers of the Bureau of Narcotics acting for the CIA.

The rationale for such testing was "that testing of materials under accepted scientific procedures fails to disclose the full pattern of reactions and attributions that may occur in operational situations."¹⁵

According to the CIA, the advantage of the relationship with the Bureau was that

test subjects could be sought and cultivated within the setting of narcotics control. Some subjects have been informers or members of suspect criminal elements from whom the [Bureau of Narcotics] has obtained results of operational value through the tests. *On the other hand, the effectiveness of the substances on individuals at all social levels, high and low, native American and foreign, is of great significance and testing has been performed on a variety of individuals within these categories.* [Emphasis added.]¹⁶

A special procedure, designated MKDELTA, was established to govern the use of MKULTRA materials abroad. Such materials were used on a number of occasions. Because MKULTRA records were destroyed, it is impossible to reconstruct the operational use of MKULTRA materials by the CIA overseas; it has been determined that the use of these materials abroad began in 1953, and possibly as early as 1950.

Drugs were used primarily as an aid to interrogations, but MKULTRA/MKDELTA materials were also used for harassment, discrediting, or disabling purposes. According to an Inspector General Survey of the Technical Services Division of the CIA in 1957—an inspection which did not discover the MKULTRA project involving the surreptitious administration of LSD to unwitting, nonvolunteer

¹⁵ *Ibid.*, p. 21.

¹⁶ *Ibid.*, pp. 11–12.

subjects—the CIA had developed six drugs for operational use and they had been used in six different operations on a total of thirty-three subjects.¹⁷ By 1963 the number of operations and subjects had increased substantially.

In the spring of 1963, during a wide-ranging Inspector General survey of the Technical Services Division, a member of the Inspector General's staff, John Vance, learned about MKULTRA and about the project involving the surreptitious administration of LSD to unwitting, nonvoluntary human subjects. As a result of the discovery and the Inspector General's subsequent report, this testing was halted and much tighter administrative controls were imposed on the program. According to the CIA, the project was decreased significantly each budget year until its complete termination in the late 1960s.

5. The Testing of LSD by the Army

There were three major phases in the Army's testing of LSD. In the first, LSD was administered to more than 1,000 American soldiers who volunteered to be subjects in chemical warfare experiments. In the second phase, Material Testing Program EA 1729, 95 volunteers received LSD in clinical experiments designed to evaluate potential intelligence uses of the drug. In the third phase, Projects THIRD CHANCE and DERBY HAT, 16 unwitting nonvolunteer subjects were interrogated after receiving LSD as part of operational field tests.

B. CIA DRUG TESTING PROGRAMS

1. The Rationale for the Testing Programs

The late 1940s and early 1950s were marked by concern over the threat posed by the activities of the Soviet Union, the People's Republic of China, and other Communist bloc countries. United States concern over the use of chemical and biological agents by these powers was acute. The belief that hostile powers had used chemical and biological agents in interrogations, brainwashing, and in attacks designed to harass, disable, or kill Allied personnel created considerable pressure for a "defensive" program to investigate chemical and biological agents so that the intelligence community could understand the mechanisms by which these substances worked and how their effects could be defeated.¹⁸

Of particular concern was the drug LSD. The CIA had received reports that the Soviet Union was engaged in intensive efforts to produce LSD; and that the Soviet Union had attempted to purchase the world's supply of the chemical. As one CIA officer who was deeply involved in work with this drug described the climate of the times: "[It] is awfully hard in this day and age to reproduce how frightening all of this was to us at the time, particularly after the drug scene has become as widespread and as knowledgeable in this country as it did. But we were literally terrified, because this was the one material that we

¹⁷ *Ibid.*, 1957, p. 201.

¹⁸ Thus an officer in the Office of Security of the CIA stressed the "urgency of the discovery of techniques and method that would permit our personnel, in the event of their capture by the enemy, to resist or defeat enemy interrogation." (Minutes of the ARTICHOKE conference of 10/22/53.)

had ever been able to locate that really had potential fantastic possibilities if used wrongly.”¹⁹

But the defensive orientation soon became secondary. Chemical and biological agents were to be studied in order “to perfect techniques . . . for the abstraction of information from individuals whether willing or not” and in order to “develop means for the control of the activities and mental capacities of individuals whether willing or not.”²⁰ One Agency official noted that drugs would be useful in order to “gain control of bodies whether they were willing or not” in the process of removing personnel from Europe in the event of a Soviet attack.²¹ In other programs, the CIA began to develop, produce, stockpile, and maintain in operational readiness materials which could be used to harass, disable, or kill specific targets.²²

Reports of research and development in the Soviet Union, the People's Republic of China, and the Communist Bloc countries provided the basis for the transmutation of American programs from a defensive to an offensive orientation. As the Chief of the Medical Staff of the Central Intelligence Agency wrote in 1952:

There is ample evidence in the reports of innumerable interrogations that the Communists were utilizing drugs, physical duress, electric shock, and possibly hypnosis against their enemies. With such evidence it is difficult not to keep from becoming rabid about our apparent laxity. We are forced by this mounting evidence to assume a more aggressive role in the development of these techniques, but must be cautious to maintain strict inviolable control because of the havoc that could be wrought by such techniques in unscrupulous hands.²³

In order to meet the perceived threat to the national security, substantial programs for the testing and use of chemical and biological agents—including projects involving the surreptitious administration of LSD to unwitting nonvolunteer subjects “at all social levels, high and low, native American and foreign”—were conceived, and implemented. These programs resulted in substantial violations of the rights of individuals within the United States.

¹⁹ Testimony of CIA officer, 11/21/75, p. 33.

²⁰ Memorandum from the Director of Security to ARTICHOKE representatives, Subject: “ARTICHOKE Restatement of Program.”

²¹ ARTICHOKE memorandum, 7/30/53.

²² The Inspector General's Report of 1957 on the Technical Services Division noted that “Six specific products have been developed and are available for operational use. Three of them are discrediting and disabling materials which can be administered unwittingly and permit the exercise of a measure of control over the actions of the subject.”

A memorandum for the Chief, TSD, Biological Branch to the Chief, TSD, 10/18/67, described two of the objectives of the CIA's Project MKNAOMI as: “to stockpile severely incapacitating and lethal materials for the specific use of TSD” and “to maintain in operational readiness special and unique items for the dissemination of biological and chemical materials.”

²³ Memorandum from the Chief of the Medical Staff, 1/25/52.

Although the CIA recognized these effects of LSD to unwitting individuals within the United States, the project continued.²⁴ As the Deputy Director for Plans, Richard Helms, wrote the Deputy Director of Central Intelligence during discussions which led to the cessation of unwitting testing:

While I share your uneasiness and distaste for any program which tends to intrude upon an individual's private and legal prerogatives, I believe it is necessary that the Agency maintain a central role in this activity, keep current on enemy capabilities the manipulation of human behavior, and maintain an offensive capability.²⁵

There were no attempts to secure approval for the most controversial aspects of these programs from the executive branch or Congress. The nature and extent of the programs were closely held secrets; even DCI McCone was not briefed on all the details of the program involving the surreptitious administration of LSD until 1963. It was deemed imperative that these programs be concealed from the American people. As the CIA's Inspector General wrote in 1957:

Precautions must be taken not only to protect operations from exposure to enemy forces but also to conceal these activities from the American public in general. The knowledge that the Agency is engaging in unethical and illicit activities would have serious repercussions in political and diplomatic circles and would be detrimental to the accomplishment of its mission.²⁶

2. *The Death of Dr. Frank Olson*

The most tragic result of the testing of LSD by the CIA was the death of Dr. Frank Olson, a civilian employee of the Army, who died on November 27, 1953. His death followed his participation in a CIA experiment with LSD. As part of this experiment, Olson unwittingly received approximately 70 micrograms of LSD in a glass of Cointreau he drank on November 19, 1953. The drug had been placed in the bottle by a CIA officer, Dr. Robert Lashbrook, as part of an experiment he and Dr. Sidney Gottlieb performed at a meeting of Army and CIA scientists.

Shortly after this experiment, Olson exhibited symptoms of paranoia and schizophrenia. Accompanied by Dr. Lashbrook, Olson sought psychiatric assistance in New York City from a physician, Dr. Harold Abramson, whose research on LSD had been funded indirectly by the CIA. While in New York for treatment, Olson fell to his death from a tenth story window in the Statler Hotel.

²⁴ Even during the discussions which led to the termination of the unwitting testing, the DDP turned down the option of halting such tests within the U.S. and continuing them abroad despite the fact that the Technical Services Division had conducted numerous operations abroad making use of LSD. The DDP made this decision on the basis of security noting that the past efforts overseas had resulted in "making an inordinate number of foreign nationals witting of our role in the very sensitive activity." (Memorandum for the Deputy Director of Central Intelligence from the Deputy Director for Plans, 12/17/63, p. 2.)

²⁵ *Ibid.*, pp. 2-3.

²⁶ I.G. survey of TSD, 1957, p. 217.

a. Background.—Olson, an expert in aerobiology who was assigned to the Special Operations Division (SOD) of the U.S. Army Biological Center at Camp Detrick, Maryland. This Division had three primary functions:

- (1) assessing the vulnerability of American installations to biological attack;
- (2) developing techniques for offensive use of biological weapons; and
- (3) biological research for the CIA.²⁷

Professionally, Olson was well respected by his colleagues in both the Army and the CIA. Colonel Vincent Ruwet, Olson's immediate superior at the time of his death, was in almost daily contact with Olson. According to Colonel Ruwet: "As a professional man . . . his ability . . . was outstanding."²⁸ Colonel Ruwet stated that "during the period prior to the experiment . . . I noticed nothing which would lead me to believe that he was of unsound mind."²⁹ Dr. Lashbrook, who had monthly contacts with Olson from early 1952 until the time of his death, stated publicly that before Olson received LSD, "as far as I know, he was perfectly normal."³⁰ This assessment is in direct contradiction to certain statements evaluating Olson's emotional stability made in CIA internal memoranda written after Olson's death.

b. The Experiment.—On November 18, 1953, a group of ten scientists from the CIA and Camp Detrick attended a semi-annual review and analysis conference at a cabin located at Deep Creek Lake, Maryland. Three of the participants were from the CIA's Technical Services Staff. The Detrick representatives were all from the Special Operations Division.

According to one CIA official, the Special Operations Division participants "agreed that an unwitting experiment would be desirable."³¹ This account directly contradicts Vincent Ruwet's recollection. Ruwet recalls no such discussion, and has asserted that he would remember any such discussion because the SOD participants would have strenuously objected to testing on unwitting subjects.³²

In May, 1953, Richard Helms, Assistant DDP, held a staff meeting which the Chief of Technical Services Staff attended. At this meeting Helms "indicated that the drug [LSD] was dynamite and that he should be advised at all times when it was intended to use it."³³ In addition, the then DDP, Frank Wisner, sent a memorandum to TSS stating the requirement that the DDP personally approve the use of LSD. Gottlieb went ahead with the experiment,³⁴ securing the ap-

²⁷ Staff summary of Vincent Ruwet Interview, 8/13/75, p. 3.

²⁸ Memorandum of Col. Vincent Ruwet, To Whom It May Concern, no date, p. 2.

²⁹ Ruwet Memorandum, p. 3.

³⁰ Joseph B. Treaster, *New York Times*, 7/19/75, p. 1.

³¹ Memorandum for the Record from Lyman Kirkpatrick, 12/1/53, p. 1.

³² Ruwet (staff summary), 8/13/75, p. 6.

³³ Inspector General Diary, 12/2/53.

³⁴ *Ibid.* Dr. Gottlieb has testified that he does not remember either the meeting with Helms nor the Wisner memorandum. (Gottlieb, 10/18/75, p. 16.)

proval of his immediate supervisor. Neither the Chief of TSS nor the DDP specifically authorized the experiment in which Dr. Olson participated.³⁵

According to Gottlieb,³⁶ a "very small dose" of LSD was placed in a bottle of Cointreau which was served after dinner on Thursday, November 19. The drug was placed in the liqueur by Robert Lashbrook. All but two of the SOD participants received LSD. One did not drink; the other had a heart condition.³⁷ About twenty minutes after they finished their Cointreau, Gottlieb informed the other participants that they had received LSD.

Dr. Gottlieb stated that "up to the time of the experiment," he observed nothing unusual in Olson's behavior.^{37a} Once the experiment was underway, Gottlieb recalled that "the drug had a definite effect on the group to the point that they were boisterous and laughing and they could not continue the meeting or engage in sensible conversation." The meeting continued until about 1:00 a.m., when the participants retired for the evening. Gottlieb recalled that Olson, among others, complained of "wakefulness" during the night.³⁸ According to Gottlieb on Friday morning "aside from some evidence of fatigue, I observed nothing unusual in [Olson's] actions, conversation, or general behavior."³⁹ Ruwet recalls that Olson "appeared to be agitated" at breakfast, but that he "did not consider this to be abnormal under the circumstances."⁴⁰

c. The Treatment.—The following Monday, November 23, Olson was waiting for Ruwet when he came in to work at 7:30 a.m. For the next two days Olson's friends and family attempted to reassure him and help him "snap out" of what appeared to be a serious depression. On Tuesday, Olson again came to Ruwet and, after an hour long con-

³⁵ Dr. Gottlieb testified that "given the information we knew up to this time, and based on a lot of our own self-administration, we thought it was a fairly benign substance in terms of potential harm." This is in conflict not only with Mr. Helms' statement but also with material which had been supplied to the Technical Services Staff. In one long memorandum on current research with LSD which was supplied to TSD, Henry Beecher described the dangers involved with such research in a prophetic manner. "The second reason to doubt Professor Rothland came when I raised the question as to any accidents which had arisen from the use of LSD-25. He said in a very positive way, 'none.' As it turned out this answer could be called overly positive, for later on in the evening I was discussing the matter with Dr. W. A. Stohl, Jr., a psychiatrist in Bleulera's Clinic in Zurich where I had gone at Rothland's insistence. Stohl, when asked the same question, replied, 'yes,' and added spontaneously, 'there is a case Professor Rothland knows about. In Geneva a woman physician who had been subject to depression to some extent took LSD-25 in an experiment and became severely and suddenly depressed and committed suicide three weeks later. While the connection is not definite, common knowledge of this could hardly have allowed the positive statement Rothland permitted himself. This case is a warning to us to avoid engaging subjects who are depressed, or who have been subject to depression.'" Dr. Gottlieb testified that he had no recollection of either the report or that particular section of it. (Sidney Gottlieb testimony, 10/19/75, p. 78.)

³⁶ Memorandum of Sheffield Edwards for the record, 11/28/53, p. 2.

³⁷ Lashbrook (staff summary), 7/19/75, p. 3.

^{37a} Gottlieb Memorandum, 12/7/53, p. 2.

³⁸ Edwards memorandum, 11/28/53, p. 3.

³⁹ Gottlieb memorandum, 12/7/53, p. 3.

⁴⁰ Ruwet memorandum, p. 3.

versation, it was decided that medical assistance for Dr. Olson was desirable.⁴¹

Ruwet then called Lashbrook and informed him that "Dr. Olson was in serious trouble and needed immediate professional attention."⁴² Lashbrook agreed to make appropriate arrangements and told Ruwet to bring Olson to Washington, D.C. Ruwet and Olson proceeded to Washington to meet with Lashbrook, and the three left for New York at about 2:30 p.m. to meet with Dr. Harold Abramson.

At that time Dr. Abramson was an allergist and immunologist practicing medicine in New York City. He held no degree in psychiatry, but was associated with research projects supported indirectly by the CIA. Gottlieb and Dr. Lashbrook both followed his work closely in the early 1950s.⁴³ Since Olson needed medical help, they turned to Dr. Abramson as the doctor closest to Washington who was experienced with LSD and cleared by the CIA.

Ruwet, Lashbrook, and Olson remained in New York for two days of consultations with Abramson. On Thursday, November 26, 1953, the three flew back to Washington so that Olson could spend Thanksgiving with his family. En route from the airport Olson told Ruwet that he was afraid to face his family. After a lengthy discussion, it was decided that Olson and Lashbrook would return to New York, and that Ruwet would go to Frederick to explain these events to Mrs. Olson.⁴⁴

Lashbrook and Olson flew back to New York the same day, again for consultations with Abramson. They spent Thursday night in a Long Island hotel and the next morning returned to the city with Abramson. In further discussions with Abramson, it was agreed that Olson should be placed under regular psychiatric care at an institution closer to his home.⁴⁵

d. The Death.—Because they could not obtain air transportation for a return trip on Friday night, Lashbrook and Olson made reservations for Saturday morning and checked into the Statler Hotel. Between the time they checked in and 10:00 p.m.; they watched television, visited the cocktail lounge, where each had two martinis, and dinner. According to Lashbrook, Olson "was cheerful and appeared to enjoy the entertainment." He "appeared no longer particularly depressed, and almost the Dr. Olson I knew prior to the experiment."⁴⁶

After dinner Lashbrook and Olson watched television for about an hour, and at 11:00, Olson suggested that they go to bed, saying that "he felt more relaxed and contented than he had since [they] came to New York."⁴⁷ Olson then left a call with the hotel operator to wake them in the morning. At approximately 2:30 a.m. Saturday, November 28, Lashbrook was awakened by a loud "crash of glass." In his report on the incident, he stated only that Olson "had crashed through the closed window blind and the closed window and he fell to his death from the window of our room on the 10th floor."⁴⁸

⁴¹ *Ibid.*, p. 4.

⁴² Lashbrook memorandum, 12/7/53, p. 1.

⁴³ Staff summary of Dr. Harold Abramson interview, 7/29/75, p. 2.

⁴⁴ Lashbrook memorandum, 12/7/53, p. 3.

⁴⁵ Abramson memorandum, 12/4/53.

⁴⁶ Lashbrook memorandum, 12/7/53, p. 3.

⁴⁷ *Ibid.*, p. 4.

⁴⁸ *Ibid.*